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Provision of October 17, 2024

Register of provisions

n. 615 of October 17, 2024

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, Members, and

Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree of June 30, 2003, n. 196 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree of August 10, 2018, n. 101 containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the complaint submitted to the Guarantor pursuant to Article 77 of the Regulation, on November 19, 2021, by Mr. XX, who complained of an unlawful processing of his personal data used for debt collection purposes by Serfin 97 S.r.l.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

### PREMISE

1. The complaint and the investigative activity.

On November 19, 2021, Mr. XX complained of an unlawful processing of his personal data used for debt collection purposes by Serfin 97 S.r.l.

More specifically, the complainant reported that Serfin 97 S.r.l. had used, as a contact to reach the debtor, an email address belonging to an acquaintance of his, specifically the email contact XX, in order to urge the payment of a debt, originally contracted with Eni gas e luce S.p.A. and then assigned, following a securitization operation, to P.E.S. S.r.l. (see Annex 1 – "email of October 23, 2021" to the complaint in question). He also specified that the aforementioned email address had never been communicated by him to the aforementioned energy supplier, nor to P.E.S. S.r.l. or to Serfin 97 S.r.l. (see the complaint request in the heading, p. 1).

In this regard, an investigation was initiated by

the undersigned Authority, by transmitting, pursuant to Article 157 of the Code, a request for information to which Serfin 97 S.r.l. was invited to provide observations regarding the facts subject to the complaint (see note of January 24, 2022). From the response received (see note from Serfin 97 S.r.l. of February 21, 2022), it emerged, among other things, that it had acted as a data processor under Article 28 of the Regulation on behalf of P.E.S. S.r.l., identified as the data controller of Mr. XX's data, following the aforementioned operation of securitization of the receivables acquired from Eni gas and luce S.p.A.

A request for information was therefore sent to P.E.S. S.r.l. (see note from the Guarantor of July 18, 2022) in order to obtain some clarifications regarding this, which was followed by some inspection checks conducted by the Special Unit for Privacy Protection and Technological Fraud of the Guardia di Finanza on October 26 and 27, 2022.

Further clarifications were also provided by P.E.S. S.r.l. in response dated April 11, 2023, following a specific request from the Guarantor sent, pursuant to Article 157 of the Code, on March 14, 2023.

## 2. The elements acquired during the investigation.

In the context of the responses indicated above and during the inspection activities carried out by the Special Unit for Privacy Protection and Technological Fraud (see minutes of October 26 and 27, 2022), the data controller represented the following:

- P.E.S. S.r.l. is "a limited liability company established in Italy pursuant to Article 3 of Law n. 130 of April 30, 1999 ("Securitization Law"), registered in the list of vehicle companies maintained by the Bank of Italy pursuant to Article 4 of the Bank of Italy resolution of June 7, number 35371.4 and having as its exclusive object the realization of one or more securitization operations of receivables. To this end, (...) -in compliance with Article 2, paragraph 3 and paragraph 6-bis of the Securitization Law- has reserved the collection of the assigned receivables and the cash and payment services, as well as the compliance checks of the operations with the law and the information prospectuses, to Centotrenta Servicing S.p.a., as a financial intermediary registered in the register pursuant to Article 106 TUB" (see note of April 11, 2023, pp. 1-2). Since its inception, on August 1, 2017, it has carried out three securitization operations (...), each with a separate asset. All (...) referable to operations of assignment of commercial receivables" (see minutes of October 27, 2022, p. 1);
- regarding the case subject to the complaint, "the Company on December 14, 2018, concluded a contract for the assignment of monetary receivables with Eni gas e luce S.p.A. (...) published

in the Official Gazette of the Italian Republic on January 10, 2019.” In this context, P.E.S. S.r.l., for the servicing activities (Article 2, paragraph 3, letter c) and paragraph 6 of Law n. 130/99) “availed itself of Centotrenta Servicing S.p.A., which in turn appointed as sub-servicer, Serfin 97 S.r.l. for the collection of receivables on its behalf” (see minutes of October 27, 2022, p. 1 and annex 12);

- the activity of “acquisition of overdue receivables described in the contract between the assignor Eni Gas and Luce S.p.a. (...) and the assignee Pes S.r.l. have been entirely managed by Centotrenta Servicing S.p.a., as Pes, being a vehicle company for the securitization of receivables, has no employees, nor does it possess applications and databases, which is why all services, including administrative ones, have been entrusted to Centotrenta Servicing S.p.A.” (see minutes of October 27, 2022, p. 2 and attachment 12).

- in the context of the securitization operation concerning the debtor relationships of the claimant, P.E.S. S.r.l. - as it operates “by virtue of a contract concluded for the assignment of monetary receivables” - is “the holder [of] the plurality of monetary receivables purchased in bulk and pro-soluto from the Assignor [Eni gas e luce S.p.A.]. This assignment of receivables necessarily involved the communication to PES of the personal data contained in the documents and electronic evidence relating to the assigned debtors to whom the receivables refer, as well as the personal data relating to the respective (if any) guarantors, successors, or assigns. (...) The data collected and processed by the company to fulfill the purposes of debt collection consists of identifying and contact personal data, asset and income information of the Interested Parties” (see minutes of October 26, 2022, p. 1);
- with specific reference to the processing of personal data relating to Mr. XX, “the Company [has] acted as the data controller of personal data, while Serfin S.r.l., regarding the credit purchased from ENI S.p.A., [has] acted as the data processor” (see minutes of October 26, 2022, p. 1).

During the aforementioned inspection checks, “a SharePoint link with the original track [of the claimant's data] purchased from Eni Gas e Luce (Attachment B to the contract) in Excel format, as well as the extract of the file of the claimant's overdue receivables and his personal data” was obtained. From the aforementioned documentation, “the existence of overdue receivables for n. 3 invoices of the claimant was found, as well as the absence of any email address [of the claimant], among the personal data” present therein (see minutes of October 27, 2022, p. 2 and Attachment no. 11).

In this regard, concerning the instructions given by P.E.S. S.r.l. to the responsible and sub-responsible companies for the processing regarding the possible updating and/or acquisition of further data of the debtors useful for the purpose of credit collection, it was also represented by P.E.S. S.r.l. that it “has never received [from its responsible and sub-responsible parties] communications of an update or increase of the personal data of the debtors” (see minutes of October 27, 2022, p. 3).

Finally, with reference to the request for information sent by the undersigned Authority to Serfin 97 S.r.l., the aforementioned Company, with a response note dated February 21, 2022, represented the following:

- Serfin 97 S.r.l. “provides credit protection services on behalf of various important commercial and financial entities and, in the context of this activity, on December 18, 2020, received a mandate from Pes S.r.l. to verify the conditions for an out-of-court settlement of the arrears accrued - among others - also from Mr. XX” (see note of February 21, 2022, cited, p. 1);
- the aforementioned Company, upon receiving the complaint from Mr. XX, “initiated an internal investigation to verify the management methods of the case involving the personnel assigned to fulfill the mandate received from the Client. It was possible to ascertain that - as per practice - calls were made to the telephone numbers provided by the Client in the records at the time of assignment on the following dates: 09/16/2021; 10/07/2021; 10/23/2021; 10/27/2021. Only subsequently was a communication sent via email” (see note of February 21, 2022, cited, p. 1);
- the personnel involved in the aforementioned verifications “also confirmed that they adhered to the prescriptions of the undersigned company regarding the management of cases and the correct processing of personal data, without exactly recalling the source from which they obtained the email address XX, likely identifiable in the communication from the interested party during the telephone

contacts that occurred, or in the acquisition of the data through the consultation of public sources (...). The difficulty in accurately reworking the course of operations is understandably due to the high number of positions managed simultaneously by Serfin 97 S.r.l.: it should be noted, by way of example, that during the year 2021, almost 1,130,936 cases of attempts at out-of-court debt recovery were entrusted to the Company" (see note of February 21, 2022, cited, p. 2);

- more generally, regarding the methods of obtaining the debtor's contact data, the procedures adopted by the Company provide for "the use of data exclusively obtainable through the following sources: indication of the contacts in the contractual format signed by the interested party; communication of the data by the interested party to the creditor/client during the course of the contractual relationship; communication of the data during the contacts that occurred directly with the interested party; acquisition of the data through the consultation of public sources; acquisition of the data through specialized companies, licensed under art. 134 T.U.L.P.S." (see note of February 21, 2022, cited, p. 1);

- following Mr. XX's request not to will allow the submission of the data and will prompt the operator to correct the entry" (see note of March 28, 2024, p. 2).

#### 4. Conclusion.

In light of the above, Serfin 97 S.r.l. respectfully requests that the Authority take into account the measures implemented and the circumstances surrounding the case when determining any potential administrative sanction. The Company remains committed to ensuring compliance with data protection regulations and to continuously improving its data management practices.

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purpose vehicle e la responsabilità del trattamento a favore del servicer, evidenzia la necessità di un'adeguata gestione dei dati personali in conformità con le normative vigenti.

##### 4.1.1. Obbligo di informativa

Il servicer è tenuto a fornire agli interessati un'informativa chiara e comprensibile riguardo al trattamento dei loro dati personali, specificando le finalità, le modalità e i diritti degli interessati in conformità con quanto previsto dagli articoli 13 e 14 del Regolamento.

##### 4.1.2. Obbligo di sicurezza

Il servicer deve adottare misure tecniche e organizzative adeguate per garantire un livello di sicurezza appropriato al rischio, in linea con l'articolo 32 del Regolamento, per proteggere i dati personali da trattamenti non autorizzati o illeciti e da perdite, distruzioni o danni accidentali.

##### 4.1.3. Obbligo di documentazione

Il servicer è obbligato a mantenere un registro delle attività di trattamento ai sensi dell'articolo 30 del Regolamento, documentando le operazioni di trattamento effettuate sui dati personali dei debitori ceduti.

##### 4.1.4. Obbligo di assistenza

Il servicer deve fornire assistenza al titolare del trattamento, in questo caso lo special purpose vehicle, per garantire il rispetto degli obblighi previsti dal Regolamento, inclusi quelli relativi alla gestione delle richieste degli interessati e alla notifica di violazioni dei dati personali.

##### 4.1.5. Obbligo di cooperazione

Il servicer deve cooperare con l'autorità di controllo competente, fornendo tutte le informazioni necessarie per dimostrare la conformità al Regolamento e facilitando eventuali audit o ispezioni.

#### 5. Conclusioni

In sintesi, alla luce delle osservazioni sopra esposte, si evidenzia l'importanza di un'adeguata gestione dei dati personali nel contesto delle operazioni di cartolarizzazione, con particolare riferimento agli obblighi imposti al servicer quale responsabile del trattamento. È fondamentale che tutte le parti coinvolte rispettino le normative vigenti per garantire la protezione dei diritti degli interessati e la legalità delle operazioni di trattamento.

**\*\*Purpose Vehicle (i.e., P.E.S. S.r.l.) recognizes\*\***

at the same time the necessary delegation of specific processing operations to a third party, the special servicer (in this case, Serfin 97 S.r.l.) which, by specific regulatory provision, must be qualified to carry out the aforementioned tasks.

The latter, being equipped with the necessary resources, both in terms of personnel and applications, as well as the expertise required for this purpose, is the entity that effectively carries out (albeit in the name and on behalf of the data controller) the processing of personal data of the debtors involved in the securitization operation, for the execution of the credit recovery task entrusted to it.

Serfin 97 S.r.l. is therefore assigned the task of determining, in concrete terms, the methods of compliance with the instructions given by the data controller due to the experience it boasts in the relevant sector (see in this regard the distinction between "essential means" and "non-essential means" of processing clarified by the European Data Protection Board – "Board", in the "Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR" – hereinafter "Guidelines 07/2020", adopted on July 7, 2021, par. 40).

As already reiterated by the Board, in fact, "a distinctive innovation introduced by the Regulation consists of provisions that impose obligations directly on data processors" (such as those provided for in Articles 30, par. 2, 32, 37, and 28, par. 3 of the Regulation), granting these subjects, compared to the previous regulatory framework, a more evident external relevance and greater responsibility in the management of data processing.

Article 28, par. 3 of the Regulation, in particular, in addition to specifying in detail the content of the designation agreement of the processor, imposes obligations directly on the latter, from which specific sanctions arise, pursuant to Article 83, par. 4, lett. a) of the Regulation, in case of non-compliance (see Guidelines 07/2020, par. 93).

Among these, it is necessary to recall, due to the characteristics of the case at hand, the obligation to act in accordance with the instructions provided by the data controller, as well as the obligation to assist the latter in ensuring compliance with the provisions of the Regulation.

In this perspective, also taking into account the peculiar context in which the processing subject to complaint took place, it is necessary to note that, in light of the appropriate instructions that the data controller is nonetheless required to provide regarding the purposes of the processing and the essential elements that constitute its means, the processor under Article 28 of the Regulation is nonetheless assigned the task of identifying, in light of the principle-based indications provided by the data controller, the most suitable technical and organizational means to carry out the processing activities subject to the assignment.

All this correctly declining, by virtue of the expertise and specific skills possessed by it, the instructions given by the data controller in order to conform the processing activities carried out on behalf of the latter to the Regulation (Article 28, par. 3 of the Regulation).

To the processor, in fact, precisely because of the role it occupies, pursuant to the regulations on securitization (in the case at hand, that of special servicer), it is required, more than in other sectors, to have a high level of specialized skills in relation to the activities specifically assigned to it, including those related to the processing of personal data of the transferred debtors.

The level of professionalism required from such a processor is even greater where the latter – as in the case of Serfin 97 S.r.l. – is also an entity that presents itself in the market as a highly specialized operator in the provision of certain services, thus generating in the data controller the belief that it has entrusted itself to a leading supplier in the aforementioned sector.

**\*\*4.2. The obligation to trace the origin of the debtor's contact data.\*\***

In relation to the instructions to be given in the context of the processing activities of the data of the transferred debtors for credit recovery purposes, the data controller is required, among other things, to prescribe to the designated processor pursuant to Article 28 of the Regulation, the adoption of measures aimed at ensuring the constant updating of the personal data of the transferred debtors. The exact fulfillment of this prescription must include the necessary verification (also in terms of the lawfulness of collection) of the personal data actually used to contact the debtor and the simultaneous transmission of the same to the data controller.

These activities are primarily aimed at ensuring, in application of the principles set forth in Article 5, par. 1, lett. a) and d) of the Regulation, that the aforementioned information has been lawfully collected (principle of lawfulness and fairness) and that it is actually attributable to the data subject (principle of accuracy); this especially in order to avoid that third parties are made aware of the debtor's insolvency situation, under penalty of harming the dignity of the latter (see provision of November 30, 2005 – "Lawfulness, fairness, and relevance in credit recovery activities", web doc. no. 1213644).

The obligation to comply with the aforementioned principles is even more compelling where, as in the case at hand, the instructions provided by the data controller, although not detailed enough to include the specific provision to trace the origin of the personal data subject to processing, contain...

of the specific obligations imposed on the data processor by the contract and the applicable regulations.

#### 4.3. Violation of Article 28, paragraph 3, letters a), e) and h) of the Regulation.

In light of the considerations expressed above, regarding the complaint subject to this decision, it has been ascertained that, at the time of processing the personal data of Mr. XX for the purposes of debt collection, Serfin 97 S.r.l., as the data processor, did not keep track of the origin of the personal data processed on behalf of P.E.S. S.r.l., nor did it include the data related to the email address XX in the "file of assigned credits" held by the data controller (see the minutes of October 27, 2022, p. 3, where it was expressly ascertained "the absence of any email address [of the complainant], among the personal data" in the documentation of the data controller related to the credit practices concerning Mr. XX and his personal data).

This occurred despite the examination of the mandate signed pursuant to Article 28 of the Regulation between P.E.S. S.r.l. and Serfin 97 S.r.l. along with the specific provisions set forth in the sub-servicing contract concluded between the parties, which instead highlighted that the data controller, at the time of the aforementioned designation, had fully provided Serfin 97 S.r.l. with appropriate instructions regarding the processing methods to be implemented. This included expressly stating that the aforementioned Company:

- should acquire "and update all data and information useful for having a constant and in-depth knowledge of the status of individual practices related to the credits" (see Annex 3 – "Sub-servicing Contract", par. 3.2, lett. vi), attached to the minutes of October 26, 2022);
- should maintain "evidence, also in electronic form, of the operations carried out in relation to the credits" and update them "continuously, so that it [was] possible to reconstruct at any time with certainty the entirety of the operations carried out" (see Annex 3 – "Sub-servicing Contract", par. 3.2, lett. j), attached to the minutes of October 26, 2022);
- should manage the "credits with the best professionalism and diligence required by industry practice," particularly adhering to "the lines of conduct set by the Data Protection Authority with the Provision of November 30, 2005, regarding the Lawfulness, correctness, and relevance in debt collection activities" (see Annex 3 – "Sub-servicing Contract", par. 3.4, lett. b) and par. 4.1, lett. b), attached to the minutes of October 26, 2022);
- should make "any necessary communication regarding the Credits and the transfer thereof, as well as the execution of the servicing contract (...) also pursuant to the Privacy Code, and cooperate (...) with the Issuer and the Servicer so that [all provisions (...) related to the processing of data and information related to the Credits and the assigned debtors required by the Privacy Code] are respected" (see Annex 3 – "Sub-servicing Contract", par. 3.2, lett. c), attached to the minutes of October 26, 2022);
- should provide "promptly [to P.E.S. S.r.l.] all data and information necessary (...) in relation to the credits (...) in order to comply with legal obligations" (see Annex 3 – "Sub-servicing Contract", par. 3.2, lett. k), attached to the minutes of October 26, 2022).

Contrary to what was expressly requested by the data controller, Serfin 97 S.r.l. did not correctly comply with these instructions, failing to adhere to those related to the updating of the personal data of the assigned debtors; the non-compliance with the aforementioned instructions does not appear justifiable, especially considering...

high level of competence required in the field of personal data processing due to the characteristics and dimensions of the activities carried out by the same in the debt collection sector.

More specifically, in fact, Serfin 97 S.r.l. failed to keep track of the origin of the data consisting of the email XX, erroneously attributed to Mr. XX, thus effectively preventing the data controller from having accurate and updated information regarding the processing of data concerning the data subject.

At the same time, the failure to comply with the instructions given by P.E.S. S.r.l. (see, in particular, the obligations to update the data related to the credits referred to in the aforementioned provisions of the servicing contract) resulted in the inability of the aforementioned data controller to provide a timely and complete response to the request regarding the right of access submitted by Mr. XX pursuant to Article 15 of the Regulation.

On this point, in fact, it is not considered possible to accept what the Company has claimed regarding the circumstance that the contested behaviors were the result of an exceptional and unpredictable error by the specifically appointed operator and that they were carried out by the latter in violation of the instructions given to him by Serfin 97 S.r.l. (see paragraph 3, letters a) and b) of this decision).

It is worth highlighting in this regard that the Company, as established during the investigation, - although required (see above, paragraph 4.2. of this decision) to ensure the accuracy of the data used to contact the debtor (including the origin of the same) - did not have, at the time of the events, technical measures in place to prevent the occurrence of situations similar to the case at hand (such as, for example, those implemented following the notification of a violation by the Authority and described in paragraph 3, letters i) and ii) of this decision).

It is also noted that, contrary to what Serfin 97 S.r.l. stated regarding the periodic transmission to P.E.S. S.r.l. of communications updating the contact details of the debtors acquired by the same after the assignment was conferred, the data controller, during the inspection, expressly stated that he "has never received [from the same] communications of (...) an increase in the personal data of the debtors" (see minutes of October 27, 2022, page 3).

For all the reasons collectively illustrated above, therefore, it is believed that the conduct of Serfin 97 S.r.l., in this case, was carried out in violation of Article 28, paragraph 3, letters a), e), and h) of the Regulation. The aforementioned violation occurred from October 23, 2021 (date of transmission of the contested email) to December 1, 2021 (date on which the Company proceeded to delete the aforementioned address from the registry concerning the complainant).

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

In light of what has been collectively noted, the Authority believes that the statements, documentation, and reconstructions provided by the Company during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to order the archiving of this procedure, as none of the cases provided for by Article 11 of the Authority's Regulation No. 1/2019 apply.

The processing of personal data carried out by Serfin 97 S.r.l. is indeed unlawful, as outlined above, with reference to the violation of Article 28, paragraph 3, letters a), e), and h) of the Regulation.

As for the exercise of the corrective powers referred to in Article 58, paragraph 2, of the Regulation, it is noted that Serfin 97 S.r.l., during the procedure, has adopted technical and organizational measures aimed at aligning the processing subject to this procedure with the Regulation, making various changes to the operational methods of its business management system, as described in paragraph 3, letters i) and ii) of this decision.

In this context, therefore, considering that specific measures have been adopted to conform the processing in question to the current regulations on personal data protection, there are currently no grounds for the adoption of the corrective measures referred to in Article 58, paragraph 2, of the Regulation.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and ancillary sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of Article 28, paragraph 3, letters a), e), and h) of the Regulation mentioned above entails the application of the administrative sanction provided for by Article 83, paragraph 4, letter a) of the Regulation.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83 of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by Serfin 97 S.r.l., which has been found to be unlawful, as outlined above.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, taking into account that the... the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account:

the significant severity of the violation (Article 83, paragraph 2, letter a) of the Regulation), in relation to the nature (concerning the non-compliance with the obligations assigned to the data controller pursuant to Article 28 of the Regulation at the time of the assignment), the modalities (consisting of the absence of appropriate organizational measures to ensure the lawfulness and accuracy of the personal data autonomously acquired by the Company) and the purposes of the related processing (carried out in the context of a debt collection activity). In this regard, it is particularly noteworthy that the violation specifically concerned the operations of contacting debtors, an activity that, in the debt collection sector, requires the utmost accuracy to avoid the communication of personal information to parties outside the obligatory relationship. The peculiar position, in terms of competence and professionalism, assumed by the Company, as a special servicer, in the context of the securitization operation of the receivables under examination, as well as the role of a primary national operator held by it in the aforementioned sector, have also had an impact on this point. In favor of the offender, however, account was taken of the short duration – of a few months (specifically from October 23 to December 1, 2021) of the violation – and the small number of affected individuals involved (consisting of two natural persons);

the negligent nature of the violation (Article 83, paragraph 2, letter b) of the Regulation), taking note of the operational instructions provided by the Company to its employees which, although not adequate with respect to the risk of processing, nonetheless highlighted the unintentional nature of the conduct held by Serfin 97 S.r.l. (see paragraph 3, letter a) of this decision);

the adoption, by the Company, of measures aimed at mitigating or eliminating the consequences of the violation (Article 83, paragraph 2, letter c) of the Regulation). In this regard, it should be positively noted that the personal data of the complainant were promptly updated, by deleting the email address erroneously used by Serfin 97 S.r.l. (see above, paragraph 2 of this decision);

the significant degree of responsibility of the offender regarding the inadequacy of the technical and organizational measures implemented by the latter (Article 83, paragraph 2, letter d) of the Regulation); this taking into account the absence, at the time of the contested facts, of procedures suitable for preventing the occurrence of events similar to that subject to complaint;

the circumstance that the Company actively cooperated with the Authority during the proceedings (Article 83, paragraph 2, letter f) of the Regulation) also in relation to the actions spontaneously initiated by it to align the processing activities with the Regulation (see paragraph 3, letters i) and ii) of this decision);

the fact that there are no previous violations committed by Serfin 97 S.r.l. or previous measures against it pursuant to Article 58 of the Regulation (Article 83, paragraph 2, letter e) of the Regulation); other mitigating factors (Article 83, paragraph 2, letter k) of the Regulation). To this end, it is noted that, in this case, the communication sent by Serfin 97 S.r.l., although addressed to an email address not



belonging to the complainant, did not in fact prove suitable to reveal the insolvency condition of the interested party (see paragraph 3 of this decision).

It is also believed that the economic conditions of the offender, determined based on the turnover of the Company, as per the financial statements for the year 2023 (the latest available), are relevant in light of the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

In light of the above elements and the overall assessments made, it is deemed, in the case at hand, to apply to Serfin 97 S.r.l. the administrative sanction of payment of an amount equal to €60,000.00 (sixty thousand).

In this context, it is also ordered that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the present measure be published on the Guarantor's website.

All this in consideration of the type of violation established that concerned the main obligations of the data controller in light of the peculiar activity carried out by the Company which, due to the nature of its corporate purpose, holds, in most of the personal data processing operations carried out by it, the role of data processor.

Also relevant in this regard are the peculiar context of the processing (debt collection activity), the type of operation carried out by the offender (use of inaccurate and outdated debtor contact data), as well as the high risks to the dignity of the interested party arising from such conduct (communication to third parties of the insolvency status of the same).

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, finds the unlawfulness of the processing carried out by Serfin 97 S.r.l., based in Rome, VAT number 05272341008 in the terms set forth in the motivation,

for the violation of art. 28, par. 3, letters a), e) and h) of the Regulation;

#### ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation, Serfin 97 S.r.l. to pay the sum of euro 60,000.00 (sixty thousand/00) as an administrative pecuniary sanction for the violation indicated in this provision.

#### REQUIRES

therefore Serfin 97 S.r.l. to pay the aforementioned sum of euro 60,000.00 (sixty thousand/00), according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981. It is noted that pursuant to art. 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term provided for the submission of the appeal as indicated below, in accordance with art. 10, paragraph 3, of legislative decree no. 150 of September 1, 2011.

#### PROVIDES

pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, for the publication of the injunction order on the Guarantor's website;

pursuant to art. 154-bis, paragraph 3 of the Code and art. 37 of the Regulation of the Guarantor no. 1/2019, for the publication of this provision on the website of the Authority;

pursuant to art. 17 of the Regulation of the Guarantor no. 1/2019, for the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to art. 78 of the Regulation, as well as articles 152 of the Code and 10 of legislative decree no. 150/2011,

against this provision, an appeal may be made to the ordinary judicial authority, with a petition filed with the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, October 17, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Ghiglia

THE SECRETARY GENERAL

Mattei